

**U.S. INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In The Matter Of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**COMPLAINANTS' RESPONSE TO RESPONDENTS' STATEMENT OF MATERIAL
FACTS IN SUPPORT OF RESPONDENTS' MOTION FOR SUMMARY
DETERMINATION OF NON-INFRINGEMENT BY OURA'S ALTERNATIVE
PRODUCTS**

Pursuant to Ground Rule 5.6.2.2, Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (collectively, "Samsung") hereby provide this response to Ouraring Inc. and Oura Health Oy's (collectively, "Oura") statement of material facts underlying their Motion for Summary Determination of Non-Infringement by Oura's Alternative Products.



Item #	Factual Statement	Citation	Disputed?	Factual Rebuttal	Citation
Background					
1	On December 12, 2025, Samsung filed a complaint seeking 337 Investigation against Oura by alleging that Oura infringes four asserted patents: U.S. Patents Nos. 10,642,359 (“’359 patent”), 10,945,677 (“’677 patent”), 10,231,675 (“’675 patent”), and the ’789 patent (collectively, “Asserted Patents”).	Original Complaint ¶1 (EDIS Doc. ID 866474)	No.	N/A.	N/A.
2	In its complaint, Samsung identified the Accused Products as “certain wearable devices, such as smart rings.”	Original Complaint ¶3 (EDIS Doc. ID 866474)	No.	N/A.	N/A.
3	The infringement claim charts accompanying Samsung’s complaint alleged infringement of only Oura Ring Gen. 4.	Original Complaint at Exs. 13-16 (EDIS Doc. ID 866474)	Yes.	The infringement claim charts accompanying Samsung’s complaint alleged infringement of Oura Ring Gen. 4 and Corresponding Applications (collectively, “Oura Accused Product”)	Original Complaint at Exs. 13-16 (EDIS Doc. ID 866474)
4	On January 14, 2026, the Commission instituted the Investigation defining the scope of the investigation as “wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as wearable electronic	Notice of Institution of Investigation (Jan. 14, 2026) (EDIS Doc. ID 868875)	No.	N/A.	N/A.

	devices for detecting biometric information.”				
5	Prior to institution of this Investigation, Oura and Samsung were engaged in another ITC Investigation, <i>Certain Smart Wearable Devices, Systems, and Components Thereof</i> , Inv. No. 337-TA-1468 (“1468 Investigation”).	Ex. 2 (Oura Complaint, Certain Smart Wearable Devices, Systems, and Components Thereof, ITC Inv. No. 337-TA-1468)	No.	N/A.	N/A.
6	In the complaint for the 1468 Investigation, Oura identified Oura Ring Generation (“Gen.”) 3, Oura Ring Gen. 4, and “next generation smart rings internally named [REDACTED] and [REDACTED] as Oura’s domestic industry products.	Ex. 2 (Oura Complaint, Certain Smart Wearable Devices, Systems, and Components Thereof, ITC Inv. No. 337-TA-1468), ¶ 5	No.	Complainants do not dispute that Oura identified Oura Ring Gen. 3, Gen. 4, [REDACTED] and [REDACTED] as Oura’s domestic industry products. However, Oura’s complaint in the 1468 Investigation describes the [REDACTED] ring as being [REDACTED] Oura’s complaint also identifies the corresponding Oura Application as a domestic industry product: “A domestic industry exists in the United States relating to articles that practice the Asserted Patents, including the Oura Ring and the corresponding Oura Application (collectively, ‘Domestic Industry Products’).”	Ex. 2 (Oura Complaint, Certain Smart Wearable Devices, Systems, and Components Thereof, ITC Inv. No. 337-TA-1468), ¶ 5
7	Samsung and Oura agreed to a discovery cross-use agreement between the 1468 and 1478 Investigations that	Ex. 3 (February 12, 2026 Correspondence between Oura	No.	N/A.	N/A.



	obviated the need for re-production of the 1468 Investigation materials in this Investigation.	and Samsung counsel); Joint Discovery Stipulation ¶ 29 (EDIS Doc. ID 878423)			
8	On January 26, 2026, Oura produced 99 technical documents comprising photographs of [REDACTED] (OURA1468_00023843 - 847).	Ex. 4 (Jan. 26, 2026 Oura Production Letter (1468 Investigation))	Yes.	Despite Oura's assertion that it "produced 99 technical documents <i>comprising</i> photos of [REDACTED] Oura points to only a single document, OURA1468_00023843-847, as a photograph of [REDACTED]. Further, the photograph is not labelled or otherwise identified in the document or the file name [REDACTED]	Ex. 76 (OURA1468_00023843)
9	On January 26, 2026, Oura produced [REDACTED] hardware tech specs (OURA1468_00023857 - 865).	Ex. 4 (Jan. 26, 2026 Oura Production Letter (1468 Investigation))	Yes.	The document Oura references, OURA1468_00023857, is a marketing document and it does not identify technical specifications, such as the PCB structure, relevant to evaluating infringement of the '789 Patent.	Ex. 33 (OURA1468_00023857)
10	On January 26, 2026, Oura produced [REDACTED] testing and teardown photographs (OURA1468_00028664 - 760).	Ex. 4 (Jan. 26, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that on January 26, 2026, Oura produced a document with measurements (OURA1468_00028664).	Ex. 77 (OURA1468_00028666 - 760)

				However, the photographs Oura references, OURA1468_00028666-760, are not teardowns of the product's PCB and thus are irrelevant to evaluating infringement of the '789 Patent. Furthermore, Oura failed to label or otherwise indicate in the documents or the file names, e.g., "IMG_9276.HEIC," "Img529.jpg," that the photographs are of [REDACTED]	
11	On January 26, 2026, Oura produced a [REDACTED] design overview (OURA1468_00056564 - 575).	Ex. 4 (Jan. 26, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that on January 26, 2026, Oura produced a document with Bates number OURA1468_00056564 – 575. However, the document does not include information relevant to evaluating infringement of the '789 Patent, including teardowns or the design layout of the PCB or its layers.	Ex. 78 (OURA1468_00056564 - 575).
12	On February 9, 2026, Oura identified the [REDACTED] and [REDACTED] products as domestic industry products in its initial burden domestic industry contentions that Oura would rely on in Investigation No. 337-TA-1468 and served charts that included images of the physical samples, teardowns, and design files for [REDACTED] and [REDACTED]	Ex. 5 (Oura Feb. 9, 2026 First Supplemental Interrogatory Responses (1468 Investigation) (Excerpts)) at 10; Ex. 6 (Oura Feb. 9, 2026 Initial Burden DI Contentions: Oura Ring [REDACTED] (Gen. 5))	No.	Complainants do not dispute that on February 9, 2026, Oura identified the [REDACTED] and [REDACTED] products as domestic industry products in its initial burden domestic industry contentions and served charts. However, the contentions and charts do not include information relevant to evaluating infringement of the '789 Patent, including teardowns or the design layout of the PCB or its layers.	Ex. 6 (Oura Feb. 9, 2026 Initial Burden DI Contentions: Oura Ring [REDACTED] (Gen. 5) Claim Chart – U.S. Patent No. 11,868,178 (1468 Investigation)); Ex. 7 (Oura Feb. 9, 2026 Initial Burden DI Contentions – Future Generation Oura Ring [REDACTED] Claim Chart – U.S. Patent No. 11,868,178 (1468 Investigation))



		Claim Chart – U.S. Patent No. 11,868,178 (1468 Investigation)); Ex. 7 (Oura Feb. 9, 2026 Initial Burden DI Contentions – Future Generation Oura Ring ()); Claim Chart – U.S. Patent No. 11,868,178 (1468 Investigation))			
13	On February 11, 2026, in the 1468 Investigation, Oura made the source code for all its domestic industry products available for inspection by Samsung, including firmware and application code related to and	Ex. 8 (Feb. 11, 2026 Oura Source Code Production Email (1468 Investigation))	No.	Complainants do not dispute that on February 11, 2026, in the 1468 Investigation, Oura made the source code for its domestic industry products available for inspection. However, source code is irrelevant to evaluating infringement of the '789 Patent because it does not contain information about the PCB structure, the feature relevant to the '789 Patent.	N/A.
14	On February 25, 2026, Oura produced 28 technical documents comprising CAD files (OURA1468_00218121 - 131).	Ex. 9 (Feb. 25, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that on February 25, 2026, Oura produced 28 technical documents including CAD files. However, these CAD files depict only the high-level structure of the ring.	Ex. 79 (Image taken from representative CAD file produced as OURA1468_00218125)



				They do not show the design layout of the PCB or its layers and are therefore irrelevant to evaluating infringement of the '789 Patent.	
15	On February 25, 2026, Oura produced [REDACTED] CAD files (OURA1468_00218132 - 137).	Ex. 9 (Feb. 25, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that on February 25, 2026, Oura produced CAD files. However, these CAD files depict only the high-level structure of the ring. They do not show the design layout of the PCB or its layers and are therefore irrelevant to evaluating infringement of the '789 Patent.	Ex. 80 (Image taken from representative CAD file produced as OURA1468_00218135)
16	On February 25, 2026, Oura produced [REDACTED] bill of materials, design schematics, and a PWB stackup specification (OURA1468_00219723 - 738).	Ex. 9 (Feb. 25, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that on February 25, 2026, Oura produced documents comprising a [REDACTED] bill of materials, design schematics, and a PWB stackup specification. However, the bill of materials does not provide any information about the internal structure of the PCB, but rather only identifies the components mounted on the PCB. [REDACTED]	Ex. 81 (OURA1468_00219723 - 738)



				Nonetheless, the documents are inconsistent with Oura's own teardown results.	
17	On March 17, 2026, Oura produced 85 technical documents comprising [REDACTED] teardown documents (OURA1468_00254628 - 645).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that on January 26, 2026, Oura produced documents comprising photos of teardowns. However, these documents are not teardowns of [REDACTED] PCB structure—the feature relevant to the '789 Patent—and are therefore irrelevant to evaluating infringement of the '789 Patent.	Ex. 82 (OURA1468_00254628 – 645)
18	On March 17, 2026, Oura produced [REDACTED] teardown documents (OURA1468_00254646 - 659).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that on January 26, 2026, Oura produced documents comprising photos of teardowns. However, these documents are not teardowns of [REDACTED] PCB structure, the feature relevant to the '789 Patent, and are therefore irrelevant to evaluating infringement of the '789 Patent.	Ex. 83 (OURA1468_00254646 – 659)
19	On March 17, 2026, Oura produced [REDACTED] bill of materials (OURA1468_00254743 - 5091).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	Yes.	Complainants dispute that Oura produced [REDACTED] bill of materials. Oura produced unusable image files of Excel XML files rather than producing usable native versions. <i>See, e.g.</i>, OURA1468_00254743. Furthermore, the file names do not indicate that these documents were, in fact, the bill of materials for the [REDACTED]	Ex. 84 (OURA1468_00254743-5091)

				ring. <i>See, e.g.</i> , OURA1468_00254743, file name: “  ” 	
20	On March 17, 2026, Oura produced  feature and design documents (OURA1468_00255092 - 338).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that Oura produced documents that discuss  features and design. However, these documents do not contain information about the PCB structure, is the feature relevant to the '789 Patent, and are therefore irrelevant to evaluating infringement of the '789 Patent.	Ex. 85 (OURA1468_00255092 – 338)
21	On March 17, 2026, Oura produced  schematic design documents and PCB stackup (OURA1468_00255339 - 375).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that Oura produced  schematic design documents and PCB stackup. However, these documents are insufficient to establish either non-infringement or infringement of the '789 Patent because they do not show the actual PCB structure in an as-manufactured  product, including the layer thicknesses. Nonetheless, the documents are consistent with infringement, not non-infringement, as Oura suggests.	Ex. 86 (OURA1468_00255339 – 377)
22	On March 17, 2026, Oura produced  photographs (OURA1468_00255376 - 394).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	Yes.	Despite Oura's assertion that it produced  photographs, the documents Oura points to, including OURA1468_00255378 - 394, failed to label or otherwise indicate in the document or the file name (e.g., “IMG_1844.jpeg”) that the photographs are of 	Ex. 87 (OURA1468_00255378 – 394)

				Further, the photographs merely show the exterior of the ring and do not show the internal PCB structure, the feature relevant to the '789 Patent, and are therefore irrelevant to evaluating infringement of the '789 Patent.	
23	On March 17, 2026, Oura produced a [REDACTED] sensor overview (OURA1468_00255395).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that Oura produced a document comprising a [REDACTED] sensor overview. However, the referenced document does not contain information about the PCB structure, the feature relevant to the '789 Patent, and are therefore irrelevant to evaluating infringement of the '789 Patent.	Ex. 88 (OURA1468_00255395)
24	On March 17, 2026, Oura produced [REDACTED] technical features specifications (OURA1468_00255396 - 447).	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that Oura produced documents comprising [REDACTED] technical features specifications. However, these documents do not contain information about the PCB structure, the feature relevant to the '789 Patent, and are therefore irrelevant to evaluating infringement of the '789 Patent.	Ex. 89 (OURA1468_00255396 – 447)
25	On March 26, 2026, Oura produced a product overview of [REDACTED] with a technical features specification (OURA1468_00256348 - 376).	Ex. 11 (Mar. 26, 2026 Oura Production Letter (1468 Investigation))	No.	Complainants do not dispute that Oura produced a document comprising a product overview of [REDACTED] with a technical features specification. However, this document does not contain information about the PCB structure, the feature relevant to the '789 Patent, and is therefore irrelevant	Ex. 37 (OURA1468_00256348)

				to evaluating infringement of the '789 Patent.	
26	On March 31, 2026, Oura made available for inspection physical samples of the [REDACTED] (OURA_PHYS_0000006) and the [REDACTED] (OURA_PHYS_0000007), including both new and teardown samples.	Ex. 12 (Mar. 31, 2026 Oura Production Email (1468 Investigation))	No.	Complainants do not dispute that Oura made available for viewing physical samples of the [REDACTED] and the [REDACTED] rings. However, viewing these physical samples, without any teardown analysis equipment, does not provide sufficient evidence about the PCB structure, the feature relevant to the '789 Patent, and are therefore irrelevant to evaluating infringement of the '789 Patent. Furthermore, Oura did not provide Samsung with samples to tear down independently, which Samsung requested in its January 20, 2026 First Set of Requests for Production for "each Accused Product."	Ex. 73 (January 20, 2026, Complainants' First Set of Requests for Production ("RFPs"))
27	In March 2026, in connection with the 1468 Investigation, Samsung deposed Miguel Christophy.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026))	No.	N/A.	N/A.
28	Miguel Christophy is Vice President of Hardware Engineering at Oura, whose primary focus is the development and production of [REDACTED] and [REDACTED] rings.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 28:13-20, 20:8-11, 26:1-27:16	No.	N/A.	N/A.

29	At his March 2026 deposition, Miguel Christophy confirmed that [REDACTED] is expected to be released in spring 2026.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 61:10-15	Yes.	N/A.	N/A.
30	At his March 2026 deposition, Miguel Christophy confirmed that the release date of [REDACTED] [REDACTED]	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 64:25-65:3	Yes.	N/A.	N/A.
31	At his March 2026 deposition, Miguel Christophy explained the hardware and sensors of [REDACTED]	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 62:24-64:19	No.	Complainants do not dispute that Mr. Christophy discussed aspects of the [REDACTED] hardware and design in his deposition. But Mr. Christophy's deposition testimony in the 1468 Investigation did not discuss the details of the internal PCB structure that is relevant to evaluating infringement of the '789 Patent.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 62:24-64:19.
32	At his March 2026 deposition, Miguel Christophy discussed the [REDACTED] hardware and design.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 65:10-72:10	No.	Complainants do not dispute that Mr. Christophy discussed aspects of the [REDACTED] hardware and design in his deposition. But Mr. Christophy's deposition testimony in the 1468 Investigation did not discuss the details of the internal PCB structure that is relevant to evaluating infringement of the '789 Patent.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 65:10-72:10



33	At his March 2026 deposition, Miguel Christophy testified regarding the CAD and hardware of [REDACTED]	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 131:4-146:15.	No.	Complainants do not dispute that Mr. Christophy discussed the CAD and hardware of [REDACTED] in his deposition. But Mr. Christophy's deposition testimony in the 1468 Investigation did not discuss the details of the internal PCB structure that is relevant to evaluating infringement of the '789 Patent.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 131:4-146:15.
34	At his March 2026 deposition, Miguel Christophy discussed the manufacturing process of [REDACTED] Ring.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 146:16-150:7	No.	Complainants do not dispute that Mr. Christophy discussed the manufacturing process of [REDACTED] Ring. But Mr. Christophy's deposition testimony in the 1468 Investigation did not discuss the details of the internal PCB structure that is relevant to evaluating infringement of the '789 Patent.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 146:16-150:7
35	At his March 2026 deposition, Miguel Christophy testified regarding the PCB structure of [REDACTED]	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 150:8-15	Yes.	While Mr. Christophy briefly discussed the PCB in [REDACTED] during his deposition testimony, he did not testify regarding the details of the PCB structure relevant to evaluating infringement of the '789 Patent asserted in this Investigation. Mr. Christophy's complete testimony is as follows: [REDACTED] [REDACTED]	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 150:8-15



					
36	At his March 2026 deposition, Miguel Christophy discussed the plan of record regarding 	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 154:9-155:15	No.	Complainants do not dispute that Mr. Christophy generally discussed a plan of record regarding  during his deposition testimony. However, the plan of record provides no information regarding the PCB structure, the feature relevant to the '789 Patent, and the referenced deposition testimony similarly does not discuss the PCB structure.	Ex. 90 (OURA1468_00255431); Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 154:9-155:15
37	At his March 2026 deposition, Miguel Christophy testified about the physical design of the  Ring, including hardware components.	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 157:15-178:17	No.	Complainants do not dispute that Mr. Christophy testified generally about the physical design of the  Ring. 	Ex. 13 (M. Christophy Dep. Tr. (1468 Investigation) (Mar. 20, 2026)) at 157:15-178:17
38	On March 16, 2026, Samsung served its initial infringement contentions in the 1478 Investigation.	Ex. 14 (Samsung Initial Infringement Contentions (1478 Investigation) (Mar. 16, 2026) (Excerpts))	No.	N/A.	N/A.
39	Samsung's initial infringement contentions in	Ex. 14 (Samsung Initial	No.	N/A.	N/A.

	the 1478 Investigation accused only Oura Ring Gen. 4 of infringing the Asserted Patents, stating: “Samsung accuses the following wearable devices and corresponding applications of infringement: Oura Ring 4 and its corresponding software application, including the Oura App.”	Infringement Contentions (1478 Investigation) (Mar. 16, 2026) (Excerpts)) at 1			
40	Samsung’s initial infringement contentions in the 1478 Investigation made no mention of either [REDACTED] or [REDACTED]	Ex. 14 (Samsung Initial Infringement Contentions (1478 Investigation) (Mar. 16, 2026) (Excerpts))	No.	N/A.	N/A.
41	On April 29, 2026, Oura amended its interrogatory responses to affirmatively identify the [REDACTED] and [REDACTED] rings as “Accused Products.”	Ex. 15 (Excerpts, Oura ___ Suppl. Response to Samsung First Set of Interrogatories (Apr. 29, 2026)) at 12-13	No.	N/A.	N/A.
42	On April 29, 2026, Oura served an interrogatory response that stated the [REDACTED] and [REDACTED] “do not directly infringe, induce infringement of, or contribute	Ex. 15 (Oura Third Suppl. Responses to Samsung’s First Set of Interrogatories	No.	N/A.	N/A.



	to the infringement of the '359 Patent, the '677 Patent, the '675 Patent, and the '789 Patent.”	(1478 Investigation) (Apr. 29, 2026) (excerpts)) at 79			
43	In its April 29, 2026 interrogatory response regarding the identity of the Accused Products, Oura identified the technical documents previously produced in the 1468 Investigation at OURA1468_00254743 – OURA1468_00255395, OURA1468_00255396 – OURA1468_00255447, and OURA1468_00256348 - OURA1468_00256376 as being responsive.	Ex. 15 (Oura Third Suppl. Responses to Samsung’s First Set of Interrogatories (1478 Investigation) (Apr. 29, 2026) (excerpts)) at 13	No.	Complainants do not dispute that on April 29, 2026, Oura provided an interrogatory response regarding the identity of the Accused Products and identified the listed Bates ranges as being responsive. However, neither the interrogatory response nor the documents Oura identified contain information regarding the PCB structure, the feature relevant to the '789 Patent, and are therefore irrelevant to evaluating infringement of the '789 Patent. Complainants incorporate by reference its factual rebuttal to Items # 19-25, which address the Bates ranges listed in this Item.	Ex. 15 (Oura Third Suppl. Responses to Samsung’s First Set of Interrogatories (1478 Investigation) (Apr. 29, 2026) (excerpts)) at 13; Complainants incorporate by reference its citations to its factual rebuttal to Items # 19-25.
44	In its April 29, 2026 interrogatory response regarding the identity of the Accused Products, Oura stated that “source code for the [REDACTED] and [REDACTED] rings” for both firmware and Oura Application code continued to be available for inspection on source code laptop since February 11 2026.”	Ex. 15 (Oura Third Suppl. Responses to Samsung’s First Set of Interrogatories (1478 Investigation) (Apr. 29, 2026) (excerpts)) at 12	No.	Complainants do not dispute that on April 29, 2026, Oura provided an interrogatory response regarding the identity of the Accused Products and stated that “source code for the [REDACTED] and [REDACTED] rings” for both firmware and Oura Application code continued to be available for inspection. However, neither the interrogatory response nor the source code Oura made available contain information regarding the PCB structure, the feature	N/A.

47	On May 5, 2026, Oura produced 14 datasheets for [REDACTED] components (OURA1478_00004839 - 5180).	Ex. 16 (May 5, 2026 Oura Production Letter (1478 Investigation))	Yes.	Complainants dispute that Oura produced documents bearing Bates numbers between OURA1478_00005152-5180. If Oura means to reference the 14 documents bearing Bates numbers OURA1478_00004839-5151, these documents failed to label or otherwise indicate in the document or the file name (e.g., “[REDACTED]”) that the datasheets were for [REDACTED] components. Further, the documents do not provide any information about the internal structure of the PCB, but instead identifies only the components mounted on the PCB. Thus, the document is irrelevant to evaluating infringement of the ’789 Patent.	Ex. 92 (OURA1478_00004839 – 5180)
48	On May 5, 2026, Oura produced 48 [REDACTED] BOMs (OURA1478_00006234 - 281).	Ex. 16 (May 5, 2026 Oura Production Letter (1478 Investigation))	No.	Complainants do not dispute that Oura produced BOMs for [REDACTED] on May 5, 2026. However, the BOMs do not provide any information about the internal structure of the PCB, but instead identifies only the components mounted on the PCB. Thus, the document is irrelevant to evaluating infringement of the ’789 Patent.	N/A.
49	On May 5, 2026, Oura produced 7 [REDACTED] component specifications and a PCB stack-up diagram	Ex. 16 (May 5, 2026 Oura Production Letter (1478 Investigation))	Yes.	Complainants dispute that the PCB board specification Oura produced describes the as-manufactured [REDACTED] product.	Ex. 93 (OURA1478_00006283 – 316)

	(OURA1478_00006283 - 316).	Letter (1478 Investigation))		 Furthermore, these documents are insufficient to establish either non-infringement or infringement of the '789 Patent because they do not show the actual PCB structure of an as-manufactured [REDACTED] product, including the layer thicknesses. Nonetheless, the documents are inconsistent with Oura's own teardown results.	
50	On May 29, 2026, Oura produced [REDACTED] testing photographs/documents, including cross-sectional views of the PCB (OURA1478_00013076 - 4258).	Ex. 17 (May 29, 2026 Oura Production Letter (1478 Investigation))	No.	Complainants do not dispute that on May 29, 2026, Oura produced various testing photographs and documents. However, these photographs and documents do not provide sufficient detail about the PCB structure to determine infringement of the '789 Patent. Nonetheless, the photographs and documents are consistent with infringement, not non-infringement, as Oura suggests. Furthermore, for the vast majority of these files, Oura failed to label or otherwise indicate in the documents or	Ex. 94 (OURA1478_00013080; OURA1478_00013247) ¹

¹ Oura points to a Bates range that spans hundreds of documents, so Complainants selected a representative selection of documents.

				the file names (e.g., “[REDACTED] [REDACTED]”) that the photographs are of [REDACTED]	
51	On May 29, 2026, Oura produced [REDACTED] photographs/testing documents, including cross-sectional views of the PCB (OURA1478_00014259 - 793).	Ex. 17 (May 29, 2026 Oura Production Letter (1478 Investigation))	No.	Complainants do not dispute that on May 29, 2026, Oura produced various testing photographs and documents. However, these photographs and documents do not provide sufficient detail about the PCB structure to determine infringement of the ’789 Patent. Furthermore, for the vast majority of these files, Oura failed to label or otherwise indicate in the documents or the file names (e.g., “[REDACTED] [REDACTED]) that the photographs are of [REDACTED]	Ex. 95 (OURA1478_00014264; OURA1478_00014350) ²
52	On May 29, 2026, Oura made available for inspection the physical samples of the rings, including [REDACTED] and [REDACTED] along with the new and tested PCB samples.	Ex. 18 (May 29, 2026 Oura Production Email (1478 Investigation))	No.	Complainants do not dispute that Oura made available for viewing physical samples of the [REDACTED] and [REDACTED] rings on May 29, 2026. However, viewing these physical samples without any teardown analysis equipment does not yield sufficient evidence of the PCB structure, the feature relevant to the ’789 Patent, and is therefore irrelevant to evaluating infringement of the ’789 Patent.	Ex. 73 (January 20, 2026, Complainants’ First Set of Requests for Production (“RFPs”))

² Oura points to a Bates range that spans hundreds of documents, so Complainants selected a representative selection of documents.

				Furthermore, Oura did not provide Samsung with samples to tear down independently, which Samsung requested in its January 20, 2026 First Set of Requests for Production for “each Accused Product.”	
53	On May 13, 2026, Oura served supplemental responses to Interrogatory Nos. 1-5 that identified OURA1478_00004838 – 5180, OURA1478_00006234 – 281, OURA1478_00006283 – 316 as responsive documents.	Ex. 19 (Oura Fifth Suppl. Responses to Samsung’s First Set of Interrogatories (1478 Investigation) (May 13, 2026) (Excerpts)) at 13, 16, 18, 21, 23.	No.	Complainants do not dispute that on May 13, 2026, Oura provided supplemental responses to Interrogatory Nos. 1-5. However, neither the supplemental interrogatory responses nor the identified documents contain information regarding the PCB structure, the feature relevant to the ’789 Patent, and are therefore irrelevant to evaluating infringement of the ’789 Patent. Complainants incorporate by reference its factual rebuttal to Items # 46-47, which address the Bates ranges listed in this Item.	Complainants incorporate by reference its citations to its factual rebuttal to Items # 46-47, which address the Bates ranges listed in this Item.
54	In its May 27, 2026 final interrogatory responses, Oura stated Samsung’s failure to advance any infringement contentions for “any other Oura product” and stated that “it has produced documents from which Complainants may ascertain relevant information responsive to this Interrogatory, including	Ex. 20 (Oura Sixth Suppl. Responses to Samsung’s First Set of Interrogatories (1478 Investigation) (May 27, 2026) (Excerpts)) at 82-84	No.	Complainants do not dispute that on May 27, 2026, Oura provided final responses to Interrogatory Nos. 1-5. However, neither the final interrogatory responses nor the identified documents contain information regarding the PCB structure, the feature relevant to the ’789 Patent, and are therefore irrelevant to evaluating infringement of the ’789 Patent.	Complainants incorporate by reference its citations to its factual rebuttal to Items # 46-47, which address the Bates ranges listed in Oura’s interrogatory response.

[REDACTED]

	without limitation those cited in Interrogatory Nos. 1-5.”			Complainants incorporate by reference its factual rebuttal to Items # 46-47, which address the Bates ranges listed in Oura’s interrogatory response.	
55	In connection with this Investigation, Samsung deposed Mr. Christopher James Vincent, Senior Director of Sourcing at Oura.	Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026))	No.	N/A.	N/A.
56	At his deposition in this Investigation, Mr. Vincent provided the following testimony: [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 21:13-20, 57:6-10.	No.	Complainants do not dispute that Mr. Vincent provided the quoted testimony. However, Mr. Vincent also provided the following testimony: [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 96 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 63:18-64:13.



57	At his deposition in this Investigation, Mr. Vincent testified that	Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 63:18-64:13	No.	N/A.	N/A.
58	In this Investigation, Oura designated three technical corporate witnesses to testify on the Accused Products: (1) Mr. Christophy, VP of Hardware Engineering at Oura, related to hardware of all accused products (2) Mr. Michael Larson, Director of Firmware, to testify on firmware of all accused products, and (3) Mr. Simon Ratner, VP of Software Engineering, to testify regarding software or application of all accused products.	Ex. 22 (2026.05.01 - Oura 30b6 Deposition Designations)	No.	Complainants do not dispute that Oura designated the three listed technical corporate witnesses to testify on the Accused Products. However, none of the three witnesses testified about the PCB structure, the feature most relevant to the '789 Patent, of or	Ex. 62 (M. Christophy Dep. Tr. (1478 Investigation) (May 15, 2026)); Ex. 97 (M. Larson Dep. Tr. (1478 Investigation) (May 19, 2026)); Ex. 98 (S. Ratner Dep. Tr.) (1478 Investigation) (May 12, 2026))
59	At his deposition in this Investigation, Mr. Christophy testified that	Ex. 23 (M. Christophy Dep. Tr. (1478 Investigation)	No.	Complainants do not dispute that Mr. Christophy said the quoted testimony. However, Mr. Christophy did not provide any testimony concerning the	Ex. 62 (M. Christophy Dep. Tr. (1478 Investigation) (May 15, 2026))

[REDACTED]

	[REDACTED]	(May 15, 2026) (Excerpt)) at 10:16-11:21		PCB structure, the feature most relevant to the '789 Patent, of [REDACTED] or [REDACTED]	
60	During the deposition of Mr. Larson, the following exchange occurred: [Witness]: [REDACTED] What are the [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 24 (M. Larson Dep. Tr. (1478 Investigation) (May 19, 2026 (Excerpts)) at 11:22-12:12:10.	No.	N/A.	N/A.
61	During the deposition of Mr. Larson, Mr. Larson answered questions regarding the [REDACTED] and [REDACTED] rings.	Ex. 24 (M. Larson Dep. Tr. (1478 Investigation) (May 19, 2026 (Excerpts)) at 26:15-27:5,	No.	Complainants do not dispute that Mr. Larson answered questions regarding the [REDACTED] and [REDACTED] rings. In particular, Mr. Larson's deposition testimony on the [REDACTED] and [REDACTED]	Ex. 97 (M. Larson Dep. Tr. (1478 Investigation) (May 19, 2026) at 60:6-17; 73:9-74:5

		44:9-45:6, 61:6-9		[REDACTED] The relevant testimony is as follows: [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	
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62	[REDACTED] launched as Oura Ring Gen. 5 on May 28, 2026 with consumers receiving their ordered shipments starting June 4, 2026 from the manufactured inventory.	Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 63:18-64:6.	No.	Complainants do not dispute that “[REDACTED] launched as Oura Ring Gen. 5 on May 28, 2026 with consumers receiving their ordered shipments starting June 4, 2026.” The cited deposition testimony does not specify June 4, 2026 as the shipment start date. Rather, Mr. Vincent testifies, [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 96 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 22-3-27:6
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[illegible]

[REDACTED]

				[REDACTED] [REDACTED] [REDACTED]	
63	Fact discovery in this Investigation ended on May 29, 2026.	Order No. 8 at 2.	No.	N/A.	N/A.
64	On June 10, 2026, Samsung's technical expert on infringement of the '789 Patent, Dr. Steven Warren, submitted his opening expert report.	Ex. 25 (Excerpts, Expert Report of Steven Warren, Ph.D. Concerning Infringement and Domestic Industry Technical Prong Issues related to U.S. Patent No. 10,978,789 (June 10, 2026)) ("Warren Inf. Rep.")	No.	N/A.	N/A.
65	In his opening expert report regarding the '789 Patent, Dr. Warren only alleged infringement of Oura Ring Gen. 4, stating as follows: [REDACTED]	Ex. 25 (Warren Inf. Rep.) ¶3	No.	N/A.	N/A.



66	In his opening expert report regarding the '789 Patent, Dr. Warren did not offer any opinions relating to the infringement by the or Products.	Ex. 25 (Warren Inf. Rep.)	No.	N/A.	N/A.
67	On June 26, 2026, Oura's technical expert on non-infringement of the Asserted Patents submitted his rebuttal expert report.	Ex. 26 (Excerpts, Rebuttal Expert Report of Dr. Bobak Jack Mortazavi Regarding Noninfringement of U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675, and 10,978,789 (June 26, 2026))("Mortazavi Reb. Rep.")	No.	N/A.	N/A.
68	In his rebuttal expert report on non-infringement, Dr. Mortazavi relied on the	Ex. 26 (Mortazavi Reb.	No.	Complainants do not dispute that Dr. Mortazavi relied on documents produced by Oura to support his non-	N/A.

	documents produced by Oura to show that [REDACTED] and [REDACTED] do not meet the asserted claims of the '789 Patent.	Rep.) at ¶¶ 651-80		infringement position for the '789 Patent. However, the documents produced were insufficient to make such an infringement determination of the '789 Patent given the lack of details regarding the PCB structure, the feature relevant to the '789 Patent.	
69	In his rebuttal expert report on non-infringement, Dr. Mortazavi used produced discovery to offer opinions that [REDACTED] does not meet claim limitations [7.C][vi][a], [7.C][vi][c], and [7.C][vi][e].	Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 655-71.	No.	Complainants do not dispute that Dr. Mortazavi used produced discovery to offer opinions that [REDACTED] did not meet the listed claim limitations. However, the discovery produced was insufficient to make an infringement determination of the '789 Patent given the lack of details regarding the PCB structure, the feature relevant to the '789 Patent.	N/A.
70	In his rebuttal expert report on non-infringement, Dr. Mortazavi used produced discovery to offer opinions that [REDACTED] does not meet claim limitations [7.C][i]-[iv] and [7.C][vi][c].	Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 672-80	No.	Complainants do not dispute that Dr. Mortazavi used produced discovery to offer opinions that [REDACTED] did not meet the listed claim limitations. However, the discovery produced was insufficient to make an infringement determination of the '789 Patent given the lack of details regarding the PCB structure, the feature relevant to the '789 Patent.	N/A.
71	Samsung deposed Dr. Mortazavi regarding his noninfringement opinions	Ex. 27 (. Mortazavi Dep. Tr. (1478 Investigation) (July 8, 2026)	No.	N/A.	N/A.



	concerning [REDACTED] and [REDACTED] on July 8, 2026.	(Excerpts)) at 532:15-569:20.			
Eligibility for Adjudication					
72	Samsung's First Amended Complaint states that "[t]he Accused Products include, but are not limited to, Respondents' Oura Ring products."	Samsung Amended Complaint Under Section 337 of the Tariff Act of 1930, at ¶ 17.	No.	N/A.	N/A.
73	The [REDACTED] ring is a wearable electronic device for detecting biometric information.	Ex. 30 (OURA1468_00 255396); Ex. 33 (OURA1468_00 023857) at OURA1468_00 023858	No.	N/A.	N/A.
74	The [REDACTED] ring is a wearable electronic device for detecting biometric information.	Ex. 31 (OURA1468_00 255092) at OURA1468_00 255092, OURA1468_00 255137	No.	N/A.	N/A.
75	The Oura Gen. 4 ring, [REDACTED] and [REDACTED] are the same type of product.	Ex. 31 (OURA1468_00 255092) at OURA1468_00 255097	No.	N/A.	N/A.



76	Oura and Samsung have stipulated that [REDACTED] and [REDACTED] are “subject articles.”	Ex. 35 (Excerpts, Joint Stipulation Regarding Importation and Inventory Between Complainants and Respondents) at Ex. A	No.	N/A.	N/A.
77	The [REDACTED] and [REDACTED] rings have been imported.	Ex. 18 (May 29, 2026 Oura Production Email (1478 Investigation)); Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 22:3-6	Yes.	Complainants dispute that the [REDACTED] and [REDACTED] rings had been imported at any time relevant to this Investigation. [REDACTED] [REDACTED]	Ex. 66 (April 22, 2026 Oura’s Responses to Samsung’s Second Set of Interrogatories) at 13; Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 22:3-6.; Ex. 69 (May 20, 2026 Email from T. Miller, attaching Exhibit A, the list of imported products)

[REDACTED]

				[REDACTED]	
78	Mr. Vincent testified that [REDACTED]	Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 22:3-6	No.	N/A.	N/A.
79	In the Importation Stipulation, the parties stipulated as follows [REDACTED]	Ex. 35 (Excerpts, Joint Stipulation Regarding Importation and Inventory Between Complainants and Respondents) at ¶3	No.	The Joint Importation and Inventory Stipulation was not entered into until June 1, 2026, after the close of fact discovery.	Ex. 68 (June 1, 2026, Joint Importation Stipulation)
80	In Confidential Exhibit A to the Importation Stipulation, [REDACTED] and [REDACTED] are listed as Subject Articles.	Ex. 35 (Excerpts, Joint Stipulation Regarding Importation and Inventory Between Complainants and Respondents) at Ex. A	No.	The Joint Importation and Inventory Stipulation was not entered into until June 1, 2026, after the close of fact discovery.	Ex. 68 (June 1, 2026, Joint Importation Stipulation)
81	The Importation Stipulation defines “Subject Articles” as “wearable devices that	Ex. 35 (Excerpts, Joint Stipulation	No.	The Joint Importation and Inventory Stipulation was not entered into until	Ex. 68 (June 1, 2026, Joint Importation Stipulation)



	allegedly infringe U.S. Patent Nos. 10,642,359 ('the '359 Patent'), 10,231,675 ('the '675 Patent'), 10,945,677 ('the '677 Patent'), and 10,978,789 ('the '789 Patent')."	Regarding Importation and Inventory Between Complainants and Respondents) at 1		June 1, 2026, after the close of fact discovery.	
82	Mr. Vincent testified at his May 21, 2026 deposition that [REDACTED]	Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 21:13-20, 57:6-10, 63:18-64:6	No.	N/A.	N/A.
83	[REDACTED]	Ex. 36 (OURA1468_00255396)	Yes.	The cited document does not support Respondents' characterization. Ex. 36 makes no mention of the PCB structure, the feature relevant to the '789 Patent, and is therefore irrelevant to evaluating infringement of the '789 Patent. Further, the document notes that there were [REDACTED] Additionally, during the March 25, 2026 deposition of Michael Chapp, Oura's Chief Operating Officer and sole corporate witness in the 1468 Investigation, in response to questions regarding the finality of the [REDACTED] ring design, Mr. Chapp testified that Oura's	Ex. 36 (OURA1468_00255396) at -5398; Ex. 60 (Michael Chapp Dep. Tr. (Mar. 25, 2026)) at 100:1-22.

[illegible]

[REDACTED]

				[REDACTED]	
84	Oura started the development of the [REDACTED].	Ex. 37 (OURA1468_00256348)	Yes.	The cited document does not support Respondents' characterization that "Oura started the development of the [REDACTED]." Ex. 37 (OURA1468_00256348) is a [REDACTED] that does not establish when development of the [REDACTED] Ring began, and makes no mention of the PCB structure, the feature relevant to the '789 Patent, and is therefore irrelevant to evaluating infringement of the '789 Patent. Additionally, during the March 25, 2026 deposition of Michael Chapp, Oura's Chief Operating Officer and sole corporate witness in the 1468 Investigation, Mr. Chapp testified that [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 37 (OURA1468_00256348); Ex. 60 (Michael Chapp Dep. Tr. (Mar. 25, 2026)) at 105:8-11, 106:20-22; 159:20-25.

[REDACTED]

				[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	
85	Oura built prototypes of the [REDACTED].	Ex. 37 (OURA1468_00256348)	Yes.	The cited material does not support Respondents' characterization that "Oura built prototypes of the [REDACTED]." Ex. 37 (OURA1468_00256348) is a [REDACTED] that [REDACTED] makes no mention of the PCB structure, the feature relevant to the '789 Patent, and is therefore irrelevant to evaluating infringement of the '789 Patent. Furthermore, during the March 25, 2026 deposition of Michael Chapp, Oura's Chief Operating Officer and sole corporate witness in the 1468 Investigation, Mr. Chapp testified that [REDACTED] [REDACTED]	Ex. 37 (OURA1468_00256348); Ex. 60 (Michael Chapp Dep. Tr. (Mar. 25, 2026)) at 159:20-25.

				[REDACTED] [REDACTED]	
86	Mr. Vincent testified at his May 21, 2026 deposition that Oura had reached [REDACTED] [REDACTED]	Ex. 21 (C.J. Vincent Dep. Tr. (1478 Investigation) (May 21, 2026)) at 57:6-10; 64:7-13	No.	Complainants do not dispute that Mr. Vincent testified that Oura had reached “ [REDACTED] . However, Mr. Vincent’s testimony conflicts with the testimony of Michael Chapp, another Oura corporate witness, who, when shown documents depicting [REDACTED] The relevant testimony from Mr. Chapp’s deposition is as follows: [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 60 (Michael Chapp Dep. Tr). at 100:5-22, 159:20-25

				[REDACTED] [REDACTED] [REDACTED] [REDACTED]	
87	[REDACTED] printed circuit board (“PCB”).	Ex 38 (OURA1468_00255163) at -164, -165, -180; Ex. 39 (OURA1468_00255190) at -210	Yes.	The cited materials do not support Respondents’ characterization. Ex. 38 illustrates future plans, broadly discusses [REDACTED] [REDACTED] It does not support that [REDACTED] with respect to its relevant PCB structure. Ex. 39 similarly does not discuss the PCB structure, let alone show that the PCB structure has been fixed in design. Additionally, during the March 25, 2026 deposition of Michael Chapp, Oura’s Chief Operating Officer and sole corporate witness in the 1468 Investigation, Mr. Chapp testified he	Ex 38 (OURA1468_00255163) at -164, -165, -180; Ex. 39 (OURA1468_00255190) at -210; Ex. 60 (Michael Chapp Dep. Tr). at 165:8-10.

				would describe [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	
88	The [REDACTED] [REDACTED]	Ex 38 (OURA1468_00 255163) at -164, -165, -180	Yes.	[REDACTED] The documents state that [REDACTED] [REDACTED] As noted for the [REDACTED] in the documents at OURA1468 00255164, "[REDACTED] [REDACTED] Furthermore, the document at OURA1468 00255173 notes v [REDACTED] [REDACTED]	Ex. 38 (OURA1468_00255163) at -165, -165, -173; Ex. 60 (Michael Chapp Dep. Tr). at 100:5-22.

				[REDACTED] Additionally, during the March 25, 2026 deposition of Michael Chapp, Oura's Chief Operating Officer and sole corporate witness in the 1468 Investigation. Mr. Chapp testified that [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	
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[REDACTED]

				[REDACTED] [REDACTED]	
89	The [REDACTED] [REDACTED]	Ex. 39 (OURA1468_00 255190) at -210	Yes.	Complainants dispute that the [REDACTED] [REDACTED] provides final technical specifications and components regarding [REDACTED] PCB structure, which is relevant to evaluating infringement of the '789 Patent. The document does not provide any detail concerning the technical specifications and components of the PCB structure. Nowhere does the document discuss the PCB, its design, its internal components, or its layers. The document is therefore irrelevant to evaluating infringement of the '789 Patent Additionally, during the March 25, 2026 deposition of Michael Chapp, Oura's Chief Operating Officer and sole corporate witness in the 1468 Investigation, Mr. Chapp testified that [REDACTED] [REDACTED]	Ex. 39 (OURA1468_00255190); Ex. 60 (Michael Chapp Dep. Tr). at 100:5-22

[REDACTED]

				[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	
90	On March 31, 2026, Oura made available for inspection physical samples of the [REDACTED] (OURA_PHYS_0000006) and the [REDACTED] (OURA_PHYS_0000007).	Ex. 12 (Mar. 31, 2026 Oura Production Email (1468 Investigation))	No.	Complainants do not dispute that Oura made available for viewing physical samples of the [REDACTED] and [REDACTED] rings on March 31, 2026. However, viewing these physical samples, without any teardown analysis equipment, does not provide sufficient	Ex. 73 (January 20, 2026, Complainants' First Set of Requests for Production ("RFPs"))

				evidence about the PCB structure, the feature relevant to the '789 Patent, and is therefore irrelevant to evaluating infringement of the '789 Patent. Additionally, Oura did not provide Samsung with samples to tear down independently, which Samsung requested in its January 20, 2026 First Set of Requests for Production for "each Accused Product."	
91	At his March 2026 deposition, Miguel Christophy testified as follows: [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 23 (M. Christophy Dep. Tr. (1478 Investigation) (May 15, 2026) (Excerpt)) at 150:8-15, 168:24-169:13	No.	N/A.	N/A.

[REDACTED]

	[REDACTED] [REDACTED] [REDACTED]				
92	On February 25, 2026, Oura produced OURA1468_00219727 – 730, which is the [REDACTED] PCB schematic.	Ex. 9 (Feb. 25, 2026 Oura Production Letter (1468 Investigation)); Ex. 41 (OURA1468_00219727 – 730)	No.	Complainants do not dispute that the referenced document, Ex. 41, is a schematic for an assembly. However, Ex. 41 only shows plan view drawings of an unlabeled product and does not provide information regarding the PCB structure needed to evaluate infringement for the '789 Patent.	Ex. 41 (OURA1468_00219727 – 730)
93	On February 25, 2026, Oura produced OURA1468_00219731, which is a [REDACTED] PCB schematic that notes each [REDACTED]	Ex. 9 (Feb. 25, 2026 Oura Production Letter (1468 Investigation)); Ex. 42 (OURA1468_00219731)	No.	Complainants do not dispute that the referenced document, Ex. 42, is a schematic for an assembly. However, Ex. 42 only shows [REDACTED] and [REDACTED] and does not provide information regarding the PCB structure needed to evaluate infringement for the '789 Patent.	Ex. 42 (OURA1468_00219731)

94	On February 25, 2026, Oura produced OURA1468_00219734 – 735, which is the PCB stackup diagram for [REDACTED]	Ex. 9 (Feb. 25, 2026 Oura Production Letter (1468 Investigation)); Ex. 43 (OURA1468_00219734 – 735)	No.	Complainants do not dispute that Oura produced a PCB stackup. However, these documents are insufficient to establish either non-infringement or infringement of the '789 Patent because they do not show the actual PCB structure of an as-manufactured [REDACTED] product, including the layer thicknesses. Nonetheless, the documents are inconsistent with Oura's own teardown results.	Ex. 43 (OURA1468_00219734 – 735)
95	On March 17, 2026, Oura produced teardown photos of [REDACTED] including OURA1468_00254628.	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation)); Ex. 44 (OURA1468_00254628)	No.	Complainants do not dispute that Oura produced a teardown photo corresponding to Ex. 44 on March 17, 2026. However, the teardown photo Oura cites does not show the details of the PCB structure relevant to infringement of the '789 Patent. Rather, the teardown photo merely depicts the ring's high-level structure.	Ex. 44 (OURA1468_00254628)
96	On March 17, 2026, Oura produced teardown photos of [REDACTED] including OURA1468_00254646.	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation)); Ex. 45 (OURA1468_00254646)	No.	Complainants do not dispute that Oura produced a teardown photo corresponding to Ex. 45 on March 17, 2026. However, teardown photo Oura cites does not show the details of the PCB structure relevant to infringement of the '789 Patent. Rather, the teardown photo merely depicts the ring's high-level structure.	Ex. 45 (OURA1468_00254646)



97	On March 17, 2026, Oura produced OURA1468_00255363 – 364, which is the [REDACTED] PCB schematic.	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation)); Ex. 47 (OURA1468_00255363 – 364)	No.	Complainants do not dispute that the referenced document, Ex. 47, is a schematic for an assembly and was produced on March 17, 2026. However, Ex. 47 only shows plan view drawings of an unlabeled product and does not provide information regarding the PCB structure needed to evaluate infringement for the '789 Patent.	Ex. 47 (OURA1468_00255363 – 364)
98	On March 17, 2026, Oura produced OURA1468_00255339 – 341, which is the [REDACTED] PCB stackup diagram.	Ex. 10 (Mar. 17, 2026 Oura Production Letter (1468 Investigation)); Ex. 46 (OURA1468_00255339 – 341)	No.	Complainants do not dispute that the referenced document, Ex. 46, includes a PCB stackup drawing for an assembly and was produced on March 17, 2026. 	Ex. 46 (OURA1468_00255339 – 341)
99	On May 29, 2026, Oura produced [REDACTED] and testing photographs/documents, including cross-sectional views of their respective PCBs, such as OURA1478_00014290 and OURA1478_00014259.	Ex. 17 (May 29, 2026 Oura Production Letter (1478 Investigation)); Ex. 48 (OURA1478_00014290);	No.	N/A.	N/A.

	[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]			[REDACTED] [REDACTED]	
102	Samsung's expert, Dr. Warren, relied on PCB Schematics, such as OURA1468_00219849 – 850, in support of his opinions regarding infringement of the '789 Patent by the Oura Gen. 4 ring.	Ex. 25 (Warren Inf. Rep.) ¶¶ 71, 104, 111, 122, 124, 128, 132; Ex. 53 (OURA1468_00219849 – 850)	Yes.	Complainants do not dispute that Dr. Warren relied on the Oura Ring 4 PCB schematic, OURA1468_00219849, in support of his opinions regarding infringement of the '789 Patent by the Oura Gen. 4 ring. However, Complainants dispute that Dr. Warren relied on OURA1468_00219850. Dr. Warren's report cites and relies on OURA1468_00219849, not OURA1468_00219850.	Ex. 25 (Warren Inf. Rep.) ¶¶ 71, 104, 111, 122, 124, 128, 132; Ex. 53 (OURA1468_00219849)

103	Oura produced PCB schematics for the [REDACTED] and [REDACTED] rings.	Ex. 41 (OURA1468_00219727 – 730); Ex. 47 (OURA1468_00255363 – 364)	No.	Complainants do not dispute that the referenced documents, Exs. 41 and 47, are schematics for assemblies. However, Exs. 41 and 47 only show plan view drawings of unlabeled products and do not provide information needed to evaluate infringement for the '789 Patent.	Ex. 41 (OURA1468_00219727 – 730); Ex. 47 (OURA1468_00255363 – 364)
104	Samsung's expert, Dr. Warren, [REDACTED] such as OURA1468_00219855 – 863, in support of his opinions regarding infringement of the '789 Patent by the Oura Gen. 4 ring.	Ex. 25 (Warren Inf. Rep.) at ¶¶ 74, 107, 112, 113, 115, 137-38, and generally <i>passim</i>); Ex. 54 (OURA1468_00219855 – 863)	No.	N/A.	N/A.
105	Oura produced PCB Stackup Diagrams for the [REDACTED] and [REDACTED] rings.	Ex. 43 (OURA1468_00219734 – 735); Ex. 46 (OURA1468_00255339 – 341)	No.	Complainants do not dispute that the referenced documents, Exs. 43 and 46, include PCB stackup drawings. However, these documents are insufficient to establish either non-infringement or infringement of the '789 Patent because they do not show the actual PCB structure of an as-manufactured [REDACTED] product, including the layer thicknesses. Nonetheless, the documents are inconsistent with Oura's own teardown results.	Ex. 43 (OURA1468_00219734 – 735); Ex. 46 (OURA1468_00255339 – 341)

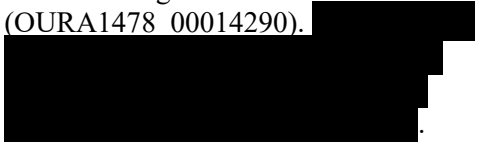
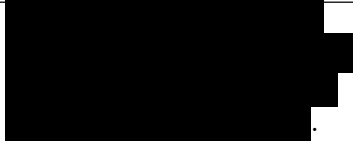
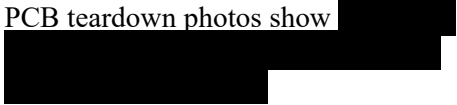


				These documents are also insufficient to establish either non-infringement or infringement of the '789 Patent because they do not show the actual PCB structure in an as-manufactured [REDACTED] product, including the layer thicknesses. Nonetheless, the documents are consistent with infringement, not non-infringement, as Oura suggests.	
106	Samsung's expert, Dr. Warren, relied on cross-section teardowns, such as OURA1468_0028605, in support of his opinions regarding infringement of the '789 Patent by the Oura Gen. 4 ring.	Ex. 25 (Warren Inf. Rep.) at ¶ 105; Ex. 55 (OURA1468_0028605)	Yes.	Complainants dispute that Dr. Warren relied on cross-section teardowns, such as OURA1468_0028605, in support of his infringement opinions. [REDACTED] [REDACTED]	Ex. 25 (Warren Inf. Rep.) at ¶¶ 105, 116-120, 137-38, and generally <i>passim</i>
107	Oura produced cross-section teardowns for the [REDACTED] and [REDACTED] rings.	Ex. 45 (OURA1468_00254646);	No.	Complainants do not dispute that Oura produced cross-sectional images of products purporting to be [REDACTED] and [REDACTED]	Ex. 45 (OURA1468_00254646); Ex. 44 (OURA1468_00254628)

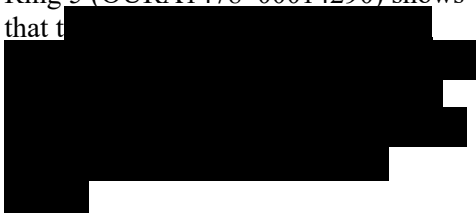


		Ex. 44 (OURA1468_00254628)		However, these cross-sectional images, such as Exs. 44 and 45, are of just the high level structure of the ring. They do not show details of the internal PCB structure relevant to evaluating infringement of the '789 Patent.	
108	Samsung's expert, Dr. Warren, relied on scanning electronic microscope images, such as SAMS382-0034753, in support of his opinions regarding infringement of the '789 Patent by the Oura Gen. 4 ring.	Ex. 25 (Warren Inf. Rep.) at ¶¶ 117, 119, 129, and generally <i>passim</i> ; Ex. 55 (OURA1468_0028605)	Yes.	Complainants do not dispute that Dr. Warren relied on scanning electron microscope images, such as SAMS382-0034753, in support of his opinions regarding infringement of the '789 Patent by the Oura Gen. 4 ring. However, Complainants dispute the relevance of the cited document, Ex. 55 (OURA1468_0028605) in this Item. That document is irrelevant to the factual statement or infringement of the '789 Patent. Furthermore, Ex. 55 is not a scanning electron microscope image.	Ex. 25 (Warren Inf. Rep.) at ¶¶ 117, 119, 129, and generally <i>passim</i> Ex. 55 (OURA1468_0028605)
109	Oura produced scanning electronic microscope images for the [REDACTED] and [REDACTED] rings.	Ex. 48 (OURA1478_00014290); Ex. 49 (OURA1478_00014241)	No.	N/A.	N/A.
Summary Determination of No Infringement					



110	Claim limitation [7.C][vi][a] of the '789 Patent requires a “second material different from the first material,” wherein the first material insulates the rigid PCB portions as a first exterior surface and the second material insulates the flexible PCB portions as a first exterior surface.	Ex. 1 ('789 Patent) at Claim 7	Yes.	Claim 7 speaks for itself. To the extent Respondents paraphrase claim limitation [7.C][vi][a], their statement is incomplete and does not fully reflect the claim language. Claim limitation [7.C][vi][a] recites in full: “[wherein each of the first flexible PCB portion and the second flexible PCB portion includes:] a first insulating layer including a second material different from the first material and forming a first exterior surface of each of the first flexible PCB portion and the second flexible PCB portion.”	Ex. 1 ('789 Patent) at Claim 7
111		Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 656-59; Ex. 57 (OURA1478_00006316)	Yes.	Complainants dispute that   Oura's assertion rests entirely on the Oura Ring 5 PCB stack-up drawing (OURA1478_00006316). But that drawing is contradicted by Oura's own SEM/cross-sectional teardown image of the Oura Ring 5 (OURA1478_00014290).  	Ex. 50 (OURA1478_00014259); Ex. 48 (OURA1478_00014290); Ex. 57 (OURA1478_00006316); Ex. 99 (S. Warren Dep. Tr. (1478 Investigation) (July 9, 2026)) at 202:15-25, 205:21-206:9, 207:3-4; Ex. 27 (Mortazavi Dep. Tr. (1478 Investigation) (July 8, 2026) (Excerpts)) at 535:18-544:4, 543:6-18.
112		Ex. 50 (OURA1478_00014259)	Yes.	Complainants dispute that the PCB teardown photos show  	Ex. 50 (OURA1478_00014259); Ex. 48 (OURA1478_00014290);



				To the contrary, Oura's SEM/cross-sectional teardown image of the Oura Ring 5 (OURA1478_00014290) shows that t 	Ex. 57 (OURA1478_00006316); Ex. 99 (S. Warren Dep. Tr. (1478 Investigation) (July 9, 2026)) at 205:21-206:9, 207:3-4
113	OURA1478_00006316 is substantively the same as OURA1468_00219734.	Ex. 57 (OURA1478_00006316); Ex. 43 (OURA1468_00219734)	Yes.	Complainants dispute that OURA1478_00006316 is substantively the same as OURA1468_00219734. For example, OURA1468_00219734 at 735 is entirely missing from OURA1478_00006316. Conversely, OURA1478_00006316 includes a stackup on the right that is not in the OURA1468_00219734 document.	Ex. 43 (OURA1468_00219734); Ex. 57 (OURA1478_00006316)
114	OURA1468_00219734 was identified in Oura's April 29, 2026 Interrogatory Responses regarding "components of the printed circuit board (PCB)."	Ex. 15 (Oura Third Suppl. Responses to Samsung's First Set of Interrogatories (1478 Investigation) (Apr. 29, 2026) (excerpts)) at 15-17	No.	N/A.	N/A.
115	OURA1478_00006316 was identified in Oura's May 13, 2026 Interrogatory Responses	Ex. 19 (Oura Fifth Suppl. Responses to Samsung's First Set of	No.	N/A.	N/A.

	regarding “components of the printed circuit board (PCB).”	Interrogatories (1478 Investigation) (May 13, 2026) (Excerpts)) at 18			
116	Claim limitation [7.C][vi][c] of the '789 Patent requires that the second insulating layer for the flexible PCB portions have a “second thickness thinner than the first thickness” of the second insulating layer for the rigid PCB portions.	Ex. 1 ('789 Patent) at Claim 7	Yes.	Claim 7 speaks for itself. To the extent Respondents paraphrase claim limitation [7.C][vi][c], their statement is incomplete and does not fully reflect the claim language. Claim limitation [7.C][vi][c] recites in full: “[wherein each of the first flexible PCB portion and the second flexible PCB portion includes:] a second insulating layer located on or above the first conduction layer and having a second thickness thinner than the first thickness.”	Ex. 1 ('789 Patent) at Claim 7
117	For [REDACTED] the “[REDACTED]” [REDACTED].	Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 662-64; Ex. 57 (OURA1478_00006316)	Yes.	Complainants dispute [REDACTED] [REDACTED] [REDACTED] [REDACTED]	Ex. 25 (Warren Inf. Rep.) at ¶¶ 244-265; Ex. 99 (S. Warren Dep. Tr. (1478 Investigation) (July 9, 2026)) at 205:21-206:9, 207:3-4; Ex. 48 (OURA1478_00014290); Ex. 57 (OURA1478_00006316)

118	Claim limitation [7.C][vi][e] of the '789 Patent requires a “second material” in the third insulating layer of the flexible PCB portions that is different from the “first material” in the third insulating layer of the rigid PCB portions.	Ex. 1 ('789 Patent) at Claim 7	Yes.	Claim 7 speaks for itself. To the extent Respondents paraphrase claim limitation [7.C][vi][e], their statement is incomplete and does not fully reflect the claim language. Claim limitation [7.C][vi][e] recites in full: “[wherein each of the first flexible PCB portion and the second flexible PCB portion includes:] a third insulating layer including the second material and located on or above the second conduction layer, the third insulating layer forming a second exterior surface of each of the first flexible PCB portion and the second flexible PCB portion.”	Ex. 1 ('789 Patent) at Claim 7
119	For [REDACTED] the [REDACTED]	Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 667-70; Ex. 57 (OURA1478_00006316);	Yes.	Complainants dispute that the [REDACTED] As with the first exterior surface, Oura's expert's assertion rests entirely on the Oura Ring 5 PCB stack-up diagram (OURA1478_00006316). But that drawing is contradicted by Oura's own SEM/cross-sectional teardown image of the Oura Ring 5 (OURA1478_00014290).	Ex. 50 (OURA1478_00014259); Ex. 48 (OURA1478_00014290); Ex. 57 (OURA1478_00006316); Ex. 99 (S. Warren Dep. Tr. (1478 Investigation) (July 9, 2026)) at 205:21-206:9, 207:3-4

[REDACTED]

				depicting [REDACTED] [REDACTED] that Dr. Mortazavi described.	
122	OURA1468_00255354 was specifically identified in Oura's April 29, 2026 interrogatory responses, including in response to Samsung's interrogatory about PCB structure.	Ex. 15 (Oura Third Suppl. Responses to Samsung's First Set of Interrogatories (1478 Investigation) (Apr. 29, 2026) (excerpts)) at 13, 17	No.	N/A.	N/A.
123	For [REDACTED] [REDACTED] and PCB portions are the same.	Ex. 26 (Mortazavi Reb. Rep.) at ¶¶ 677-79; Ex. 58 (OURA1478_00013242)	Yes.	Complainants dispute [REDACTED] [REDACTED] [REDACTED]	Ex. 25 (Warren Inf. Rep.); Ex. 99 (S. Warren Dep. Tr. (1478 Investigation) (July 9, 2026)) at 210:24-211:14, 213:24-214:13; Ex. 58 (OURA1478_00013242)

[REDACTED]

				[REDACTED]	
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Dated: July 23, 2026

Respectfully submitted,

/s/ D. Sean Trainor

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CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on July 23, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on August 6, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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